

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 723

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO CHILD CARE LICENSING; PROVIDING LEGISLATIVE FINDINGS AND INTENT; AMENDING CHAPTER 12, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-1210A, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE DEPARTMENT'S QUALITY OF CARE OVERSIGHT; AMENDING CHAPTER 12, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-1210B, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING INDIVIDUALIZED SERVICE PLANNING AND DOCUMENTATION REQUIREMENTS FOR RESIDENTIAL CARE FACILITIES; AMENDING CHAPTER 12, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-1225, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING THE YOUTH BILL OF RIGHTS IN LICENSED CHILDREN'S RESIDENTIAL FACILITIES; AMENDING CHAPTER 12, TITLE 39, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 39-1226, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING CRITICAL INCIDENT REPORTING IN LICENSED CHILDREN'S FACILITIES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. LEGISLATIVE FINDINGS AND INTENT. It is the intent of the Legislature to protect children in licensed children's residential care facilities through the creation of the Youth Bill of Rights, enhanced inspection and quality care oversight, and comprehensive critical incident reporting. The Legislature finds that all children placed in licensed children's residential care facilities are entitled to be treated with dignity, protected from harm, and fully informed of their rights. It is the intent of the Legislature that the Department of Health and Welfare establish, develop, distribute, post, and include an explanation and interpretation of the Youth Bill of Rights to ensure children and their families can exercise those rights during care and understand how to seek assistance or file complaints with the department. The Legislature further finds that Idaho's children and youth in licensed residential care facilities, when taking into account a child's individual needs, should expect to receive care that is safe, evidence-based, trauma-informed, and consistent with professional and ethical standards. It is the intent of the Legislature for the Department of Health and Welfare to establish a comprehensive framework for evaluating quality of care, staff competency, family engagement, and resident well-being across all licensed facilities, inspections to assess compliance with all applicable licensing rules and health and safety standards, and full and focused surveys to assess adherence to the Youth Bill of Rights.

SECTION 2. That Chapter 12, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-1210A, Idaho Code, and to read as follows:

1 39-1210A. QUALITY OF CARE OVERSIGHT -- INSPECTIONS AND INTERVIEWS
 2 -- LICENSING. (1) The department shall assess the quality of care of all
 3 licensed children's residential care facilities. To assess the quality of
 4 care, the department shall:

5 (a) Conduct an annual unannounced inspection of each licensed residen-
 6 tial care facility and additional inspections as warranted by substan-
 7 tiated complaints, serious incidents, prior deficiencies, significant
 8 operational changes, or patterns of noncompliance. The annual inspec-
 9 tion shall include:

10 (i) Review of the facility's quality assurance program required
 11 by the department, including documentation demonstrating its im-
 12 plementation and effectiveness in meeting residents' individual
 13 safety needs and service plan. Accreditation reports issued by a
 14 nationally recognized accrediting organization may be accepted as
 15 evidence of compliance with this requirement; and

16 (ii) Review of the program description to ensure the facility's
 17 compliance with its approved program description and its capacity
 18 to serve the specific safety needs of each child.

19 (b) Conduct announced and unannounced interviews and surveys with
 20 children in the facility to identify strengths and weaknesses of the
 21 program and then integrate the children's feedback into the quality
 22 improvement and licensing review processes;

23 (c) Review adherence to the youth bill of rights; and

24 (d) Conduct other activities as it deems appropriate.

25 (2) As part of the licensing inspection process, the department shall
 26 conduct confidential, in-person interviews with a sample representative
 27 of current residents and facility staff selected exclusively by department
 28 personnel using an independent and objective process. Facility administra-
 29 tors or staff shall not participate in the selection of interviewees. The
 30 department shall document the findings of these interviews and incorporate
 31 the results into its overall compliance assessment, quality review, and any
 32 required corrective action plan.

33 (3) Findings from inspections and interviews by the department that re-
 34 veal violations of licensing requirements, the youth bill of rights, docu-
 35 mentation requirements, or statutory protections shall be grounds for en-
 36 forcement action, including corrective plans, sanctions, or referral to the
 37 child abuse reporting hotline or law enforcement as appropriate. Addition-
 38 ally, upon a finding of a violation, the department shall:

39 (a) Complete a critical incident report;

40 (b) Uphold standards for interview procedures, documentation, and con-
 41 fidentiality;

42 (c) Maintain the criteria for determining inspection frequency and
 43 scope; and

44 (d) Maintain timelines for follow-up inspections and compliance veri-
 45 fications.

46 SECTION 3. That Chapter 12, Title 39, Idaho Code, be, and the same is
 47 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 48 ignated as Section 39-1210B, Idaho Code, and to read as follows:

1 39-1210B. INDIVIDUALIZED SERVICE PLANNING AND DOCUMENTATION REQUIRE-
 2 MENTS FOR RESIDENTIAL CARE FACILITIES. (1) Residential care facilities
 3 shall document the following information at the time of a child's placement:

- 4 (a) The physical and emotional state of the child upon intake;
- 5 (b) The child's primary diagnosis;
- 6 (c) The nature of the child's problems;
- 7 (d) The child's physical, social, and emotional development and any
 8 special problems and needs the child may have; and
- 9 (e) Reports on psychological tests, psychiatric examinations, and fol-
 10 low-up treatment, if obtained.

11 (2) The facility shall develop and document an individualized service
 12 plan for each child. The initial individualized service plan shall be writ-
 13 ten within thirty (30) days after a child has been admitted to the facility
 14 and shall include:

- 15 (a) The needs of the child and the child's family;
- 16 (b) The goals for the child and time frames to achieve such goals;
- 17 (c) The services the facility will provide to assure the safety, health,
 18 and well-being of the child; and
- 19 (d) The criteria for discharge and the projected discharge date.

20 (3) The facility shall update the individualized service plan every
 21 ninety (90) days to document the progress toward achieving the goals refer-
 22 enced in the initial plan.

23 (4) If a child is placed in the facility for less than thirty (30) days,
 24 the initial service plan shall include, upon admission:

- 25 (a) The immediate needs of the child; and
- 26 (b) The services the facility will provide to assure the safety,
 27 health, and well-being of the child.

28 (5) The facility shall complete a discharge summary written within
 29 seven (7) days of the discharge of a child, which shall include:

- 30 (a) The date and reason for the child's discharge from the facility;
- 31 (b) The physical, emotional, medical, and educational needs of the
 32 child; and
- 33 (c) Recommendations for treatment.

34 SECTION 4. That Chapter 12, Title 39, Idaho Code, be, and the same is
 35 hereby amended by the addition thereto of a NEW SECTION, to be known and des-
 36 ignated as Section 39-1225, Idaho Code, and to read as follows:

37 39-1225. YOUTH BILL OF RIGHTS IN LICENSED CHILDREN'S RESIDENTIAL
 38 FACILITIES. (1) The department shall develop, publish, and periodically
 39 update a youth bill of rights that applies to all children residing in fa-
 40 cilities licensed by the department pursuant to this chapter and department
 41 rules. The youth bill of rights shall include, at a minimum, rights related
 42 to:

- 43 (a) Physical and emotional safety;
- 44 (b) Access to medical and behavioral health care;
- 45 (c) Communication and visitation with family, legal representatives,
 46 and advocates;
- 47 (d) Privacy and confidentiality;
- 48 (e) Participation in educational and recreational activities;
- 49 (f) Freedom from abuse, neglect, and unreasonable restraints;

(g) Fair grievance and complaint processes without retaliation; and

(h) Reporting of concerns or violations to the department.

(2) The youth bill of rights shall clearly be explained, in plain language appropriate for the child's age and abilities, how to contact the child abuse reporting hotline, including the phone number, website, and mailing address.

(3) Each licensed children's residential facility shall:

(a) Post the youth bill of rights in a prominent, public area of the facility accessible to children and visitors;

(b) Distribute a copy of the youth bill of rights to each child and the child's parent or legal guardian at the time of admission and upon request thereafter;

(c) Interpret and explain the youth bill of rights to the child and family in age-appropriate and culturally and linguistically appropriate formats, including provision of interpretation services for limited-English-proficient and disabled persons as necessary;

(d) Document that the youth bill of rights has been provided and explained, including the date, the recipients' names, and the name of the staff member who conducted the explanation;

(e) Ensure that children are provided with access to private and unmonitored communication with the child abuse reporting hotline upon request;

(f) Document compliance with mandated requirements; and

(g) Adopt processes and procedures for children to confidentially contact the child abuse reporting hotline and for staff to assist children in doing so when requested.

(4) The department shall develop enforcement mechanisms and penalties for noncompliance with this section, including consideration as a licensing violation.

(5) No child or family member may be retaliated against for invoking or attempting to exercise any right provided in the youth bill of rights or for contacting the child abuse reporting hotline. Retaliation shall constitute a licensing violation subject to corrective action and potential sanctions determined by the department.

SECTION 5. That Chapter 12, Title 39, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 39-1226, Idaho Code, and to read as follows:

39-1226. CRITICAL INCIDENT REPORTING IN LICENSED CHILDREN'S FACILITIES. (1) As used in this section, "critical incident" means any event that threatens or significantly impacts the physical or psychological safety, health, rights, or well-being of a child in a licensed children's residential care facility, including but not limited to:

(a) The death of a child;

(b) A suicide attempt or serious self-harm;

(c) Use of physical restraint, seclusion, or any emergency safety intervention;

(d) Denial or unreasonable delay of requested or necessary medical care;

1 (e) Admission to, or transport to or from, a hospital or emergency medi-
2 cal facility;

3 (f) Any allegation or incident of physical, sexual, or emotional abuse
4 or harm;

5 (g) Any child detained, charged, or arrested by law enforcement or a
6 regulatory agency;

7 (h) Any unauthorized absence, runaway, or attempted elopement;

8 (i) Any fire, evacuation, or environmental hazard on site;

9 (j) Any condition of the facility that poses an immediate threat to
10 health or safety; and

11 (k) Any other incident designated by the department by rule.

12 (2) Each licensed children's residential facility shall:

13 (a) Notify the department by close of the next business day of any crit-
14 ical incident using the department-approved reporting process;

15 (b) Notify the child's parent, legal guardian, or placing agency of the
16 incident by close of the next business day, unless prohibited by court
17 order or safety concerns documented by the agency; and

18 (c) Maintain an internal critical incident log and supporting documen-
19 tation, including incident reports, staff notes, and any follow-up or
20 investigation records, which shall be made available for review during
21 inspections.

22 (3) All reports and logs must protect personally identifiable infor-
23 mation and comply with applicable state and federal confidentiality laws,
24 including the health insurance portability and accountability act and the
25 family educational rights and privacy act, as applicable. The department
26 shall:

27 (a) Maintain and safeguard content of critical incident reports;

28 (b) Follow best practices for emergency safety interventions;

29 (c) Conduct reviews, follow-up, and data analysis of reported inci-
30 dents; and

31 (d) Publicize the results with any substantiated findings and enforce-
32 ment actions.

33 (4) This section shall not be construed to alter any reporting require-
34 ments pursuant to section 16-1605, Idaho Code.

35 SECTION 6. An emergency existing therefor, which emergency is hereby
36 declared to exist, this act shall be in full force and effect on and after
37 July 1, 2026.